

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600010	GEISLER VS UHS-CORONA , INC.	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling: Plaintiff's Motion for Preferential Setting is denied.

C.C.P., § 36(a) provides that a party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (C.C.P., § 36(a)(1)-(2).)

C.C.P., § 36(d) provides that the court may, in its discretion, grant a motion for preference "accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference." Under section 36(d), the Court has discretion to grant preference when accompanied by "clear and convincing medical documentation" that concludes a party "suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months." As the *Fox* court noted, this standard is "more specific and more rigorous" than subdivision (a). (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.)

The Court is also provided discretion to grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference. (C.C.P., § 36(e).) Upon the granting of a motion for trial preference, "the court shall set the matter for trial not more than 120 days from that date." (C.C.P., § 36(f).)

Here, Plaintiff is 57 years old and thus has not established application of C.C.P., § 36(a) [requiring party to be over 70 years of age]. Moreover, Plaintiff has not submitted clear and convincing medical documentation that she suffers from an illness or condition raising substantial medical doubt of survival beyond six months as required for relief under C.C.P., § 36(d).

Plaintiff submits a declaration in support stating she is 57 years old, permanently disabled since December 31, 2016, suffers from "serious chronic and progressive medical conditions, including chronic heart failure, chronic respiratory failure, COPD, pulmonary fibrosis/interstitial lung disease, pulmonary hypertension and atrial fibrillation," requires continuous oxygen 24 hours/day and experiences recurrent episodes of acute encephalopathy and altered mental status requiring hospitalization approximately once per month. (Geisler Decl., 2:4-10.) She attaches a letter from her treating physician, Dr. Jason A. Black, dated December 12, 2025, who declare: "Geisler suffers from a number of serious health conditions which frequently result in hospitalizations. For this reason, we are requesting that her current legal proceedings be expedited, as her status is likely to worsen over time and we never know when her health will take an unexpected turn." (Geisler Decl., Exh. A.) Although sympathetic to

Plaintiff's circumstances, the court finds that the interests of justice will not be served by granting preference at this juncture. Setting this case for trial 120 days from this date, when no discovery has occurred would not serve the interests of any party.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601231	THOITS VS OREMOR OF RIVERSIDE GM LLC	DEMURRER ON COMPLAINT

Tentative Ruling: Hearing is continued to 8/24/26.

CCP § 430.41 and § 435.5 require a meet and confer process via phone or in person before filing a demurrer or motion to strike five days before the responsive pleading is due. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP § 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP § 430.41(a)(3).)

Here, Defendant Mark Christopher Chevrolet asserted that it made an attempt to meet and confer on 5/5/26 by telephone and email, and after it did not receive a response, filed the instant motion. (Kay Decl. ¶ 2). This is insufficient.

The hearing is continued to 8/24/26, Defendant Mark Christopher Chevrolet is ordered to satisfy its obligation to meet and confer in person or by telephone with Plaintiff, the opposing party, pursuant to Code of Civil Procedure section 430.41. After meeting and conferring, the demurring Defendant is ordered to do one of the following at least five days before the continued hearing date:

- (1) vacate the hearing on the demurrer;
- (2) file with the court a declaration that the opposing party has agreed to file an amended pleading before the hearing date; or
- (3) file with the court a declaration explaining how the parties met and conferred, what issues they discussed, and why they could not resolve the issues raised.